

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bernardo Gutierrez	Team: Team # 5	CCRB Case #: 201201184	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 01/23/2012 10:45 AM	Location of Incident: § 87(2)(b) and § 87(2)(b) 83rd Precinct stationhouse	18 Mo. SOL 7/23/2013	Precinct: 83
Date/Time CV Reported Fri, 01/27/2012 12:14 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/27/2012 12:14 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Castronova	27956	929856	083 PCT
2. POM Derek Almeida	25236	946426	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dilson Abreu	23409	933590	083 PCT
2. SGT Gurudeo Ramoutar	05007	931011	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Castronova	Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Derek Almeida	Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Daniel Castronova	Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova used physical force against § 87(2)(b)	C . Exonerated
D . POM Daniel Castronova	Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova struck § 87(2)(b) with a bicycle.	D . Unsubstantiated
E . POM Derek Almeida	Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida struck § 87(2)(b) with a bicycle.	E . Unsubstantiated
F . POM Daniel Castronova	Abuse: At the 83rd Precinct stationhouse, PO Daniel Castronova strip-searched § 87(2)(b)	F . Unsubstantiated
G . POM Derek Almeida	Abuse: At the 83rd Precinct stationhouse, PO Derek Almeida strip-searched § 87(2)(b)	G . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint by telephone with the CCRB on January 27, 2012 (encl. 3A-3C). On January 23, 2012, at approximately 10:45 a.m., § 87(2)(b) was arrested by Officers Daniel Castronova and Derek Almeida at the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A- Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova used physical force against § 87(2)(b)

Allegation B- Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida used physical force against § 87(2)(b) § 87(2)(g)

§ 87(2)(b), it is recommended that **allegations A and B be closed as unsubstantiated.**

Allegation C-Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova used physical force against § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that **allegation C be closed as exonerated.**

Allegation D-Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova struck § 87(2)(b) with a bicycle.

Allegation E-Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida struck § 87(2)(b) with a bicycle. § 87(2)(g)

§ 87(2)(b), it is recommended that **allegations D and E be closed as unsubstantiated.**

Allegation F- Abuse of Authority: At the 83rd Precinct stationhouse, PO Daniel Castronova strip-searched § 87(2)(b)

Allegation G- Abuse of Authority: At the 83rd Precinct stationhouse, PO Derek Almeida strip-searched § 87(2)(b) § 87(2)(g)

§ 87(2)(b), it is recommended that **allegations F and G be closed as unsubstantiated.**

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a Hispanic man who § 87(2)(b) has black hair and brown eyes. § 87(2)(b)

Statements to Medical Personnel

On § 87(2)(b) § 87(2)(b) attended § 87(2)(b). § 87(2)(b) stated that he was assaulted by police the day before. On § 87(2)(b), § 87(2)(b) went to § 87(2)(b) office. § 87(2)(b) attributed a bruised eye and broken bones to police officers. § 87(2)(b) told medical personnel that he was told to stop his bicycle, and that when he rode to the side to exit the flow of traffic, officers threw him to the ground and beat him (encl. 2A-2D).

IAB Statements

§ 87(2)(b) provided statements to IAB on March 20, 2012, and March 27, 2012 (encl. 4A-4B).
§ 87(2)(g)

CCRB Testimony

§ 87(2)(b) provided a telephone statement when he filed this complaint with the CCRB on January 27, 2012 (encl. 3A-3C). § 87(2)(b) provided telephone statements to the CCRB on March 1, 2012, and March 19, 2012 (encl. 5 and 7). He provided a sworn statement on March 15, 2012 (encl. 6A-6H). § 87(2)(g)

On January 23, 2012, at approximately 10:45 a.m., § 87(2)(b) was riding his bicycle along § 87(2)(b) in Brooklyn. § 87(2)(b) was en route to a friend's house to bring him eight Xanax pills which he had bought half an hour earlier. He carried the pills in one of his hands. § 87(2)(b) made a left onto § 87(2)(b) and rode between the oncoming cars and the sidewalk. As § 87(2)(b) neared the corner of § 87(2)(b) and § 87(2)(b) the passenger door of a green van that was driving in § 87(2)(b)'s direction suddenly opened as it was in motion. (The investigation determined that the incident actually occurred at the intersection of § 87(2)(b) and § 87(2)(b) approximately one block away.) § 87(2)(b) avoided the door by riding around it and stood behind the van. In his telephone statement from March 1, 2012, he said that he remained stationary as the door was opened.

Two uniformed officers exited the van. § 87(2)(b) described the driver as a white man with blond hair, approximately 6'1" tall, approximately 200 pounds, in his 40's. The investigation identified this officer as PO Daniel Castronova. He described the passenger as a Hispanic man with black hair, approximately 5'3" tall, approximately 150 pounds, in his 30's. The investigation identified this officer as PO Derek Almeida. PO Castronova asked § 87(2)(b) why he had not stopped the bicycle. § 87(2)(b) described himself as being thrown off of the bicycle in his initial statements to the CCRB and IAB. In his second telephone statement to the CCRB, he stated that the officers had pushed him off of his bicycle, into the ground. In his sworn statement, § 87(2)(b) stated that he could not recall the manner in which he was brought to the ground.

§ 87(2)(b) landed face down on the ground and had his left cheek to the ground. PO Castronova began to punch § 87(2)(b) all over his face while PO Almeida handcuffed him. § 87(2)(b) did not move his body as this was occurring and did not resist arrest. PO Castronova continued to punch § 87(2)(b) after he had been handcuffed.

PO Castronova lifted § 87(2)(b) by his legs and PO Almeida lifted § 87(2)(b) by his handcuffed arms, causing his left arm to become briefly dislocated at the elbow. On March 20, 2012, § 87(2)(b) told IAB that this action caused pain, but did not mention a dislocation (encl. 4A-4B). The officers threw § 87(2)(b) into the back of the van while holding him in this manner. They then threw § 87(2)(b)'s bicycle on top of him, striking him on his back. In his initial telephone statement, § 87(2)(b) did not say he was struck with a bicycle. In his March 1, 2012, telephone statement, § 87(2)(b) stated that he could not recall where on his body the bicycle made contact when it was thrown.

§ 87(2)(b) was transported to the 83rd Precinct stationhouse. Once there, he was taken into a room with PO Castronova and PO Almeida. The officers ordered him to get completely naked, to show them his genitals and to spread his buttocks. He was then transported to Brooklyn Central Booking.

Witness: § 87(2)(b)

- § 87(2)(b) *did not provide any pedigree information.* § 87(2)(b)

Telephone Statement

On March 19, 2012, and March 21, 2012, § 87(2)(b) provided telephone statements to the CCRB (encl. 8A-8B). On January 23, 2012, at approximately 10 a.m., § 87(2)(b) exited his store, located at § 87(2)(b). § 87(2)(b) observed Officers Castronova and Almeida with § 87(2)(b) who was in handcuffs. The group was standing on § 87(2)(b). The officers shoved § 87(2)(b) inside a side door of the van. § 87(2)(b) had been on his feet when pushed inside, and resisted being placed inside by holding his legs against the side of the van. A bicycle was thrown inside the van's rear door, not the same door that § 87(2)(b) had entered. He stated that the bicycle would not have struck § 87(2)(b) due to the seating arrangement of the van. § 87(2)(b) did not observe § 87(2)(b) being struck in any manner. § 87(2)(b) declined to provide a sworn statement to the CCRB, citing his busy schedule.

NYPD Statements:

Subject Officer: PO DANIEL CASTRONOVA

- PO Castronova, § 87(2)(b) old at the time of the incident, is a white man who § 87(2)(b) has brown hair and blue eyes.
- On January 23, 2012, PO Castronova was assigned to the Street Narcotics Enforcement Unit in uniform from the hours of 7:00 a.m. to 3:35 p.m. PO Castronova was partnered with PO Derek Almeida and was assigned to an unmarked black van, number 3454.

Memo Book

At 10:45 a.m., § 87(2)(b) was arrested at the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) resisted arrest at the scene by flailing his arms, kicking his feet, and refusing to be handcuffed. PO Abreu took the arrest (encl. 9A-9B).

Supporting Deposition

The Supporting Deposition, which was prepared by PO Castronova, noted that 20 loose Xanax tablets were recovered from § 87(2)(b)'s pants pocket during his arrest. A section labeled "Resisting Arrest" is crossed out, with "N/A" written over it (encl. 9C-9F).

CCRB Testimony

PO Castronova provided a sworn statement to the CCRB on April 16, 2012 (encl. 9G-9I). On January 23, 2012, at approximately 10:45 a.m., PO Castronova and PO Almeida were driving along § 87(2)(b) a two-way street. PO Castronova was riding in the front passenger seat. As they were approaching the intersection with § 87(2)(b) PO Castronova observed § 87(2)(b) riding a bicycle on § 87(2)(b) against the flow of traffic, which is a violation. PO Castronova noticed that § 87(2)(b) was observing multiple loose pills in his right hand.

PO Castronova exited the van as § 87(2)(b) was approximately 3 feet away, identified himself as a police officer, and ordered him to stop. § 87(2)(b) did not stop and rode past PO Castronova on his side of the vehicle. § 87(2)(b) attempted to shove the pills into his pocket while pedaling away rapidly. PO Almeida caught up to § 87(2)(b) behind the van and stopped the bicycle by grabbing one of his wrists as well as one of the bicycles handlebars.

PO Castronova ordered § 87(2)(b) to get off the bicycle and attempted to pull one of his arms off the bicycle's handlebars. PO Almeida attempted to pull his other arm off the bicycle. § 87(2)(b) refused to dismount the bicycle. The fact that § 87(2)(b) had the bicycle between his legs at this point made the position awkward, and caused § 87(2)(b) and PO Castronova to fall to the ground. PO Castronova was unsure if PO Almeida fell. PO Castronova's intention had been to get § 87(2)(b) off the bicycle.

§ 87(2)(b) struck his torso area upon falling to the ground. PO Castronova and § 87(2)(b) were several inches from § 87(2)(b) center divide and were approximately five feet behind the police van at this point. Vehicles in the same lane had stopped, and were approximately ten feet away. PO Castronova stated that he was concerned, as this street is very busy, and he feared that an overzealous driver going around the stopped vehicles would run him and § 87(2)(b) over.

§ 87(2)(b) began to flail his arms and kick his legs. PO Castronova was unsure if he was kicking at officers. § 87(2)(b) refused to provide his arms to be handcuffed. In order to overcome this resistance, PO Castronova grappled with him and punched him less than five times on his head and torso. § 87(2)(b) continued to resist after being struck. PO Castronova did not specify what assistance, if any, PO Almeida would have provided during this physical altercation.

PO Castronova handcuffed § 87(2)(b) after an undetermined amount of time. § 87(2)(b) was placed in the rear of the van along with the bicycle. § 87(2)(b) walked in to the van on his own. PO Castronova denied himself or his partner lifting § 87(2)(b) by his legs and arms and throwing him into the van. Neither officer threw his bicycle into the back of the van.

§ 87(2)(b) was driven to the 81st Precinct stationhouse. A total of 20 Xanax pills were ultimately confiscated. The last time PO Castronova saw § 87(2)(b) was at the front desk. PO Castronova was unaware of a strip search having been conducted.

PO Castronova was informed that § 87(2)(b) attended § 87(2)(b) on § 87(2)(b) and went to a private doctor on § 87(2)(b) and was found to have sustained two fractures to his right eye socket, as well as bruises to his left eye. PO Castronova could not account for what would have caused these injuries. PO Castronova was shown that in § 87(2)(b)'s arrest report, he is not noted as having resisted arrest. PO Castronova attributed this to a clerical error, in which he accidentally marked that § 87(2)(b) had not resisted arrest in his supporting deposition.

When asked if he was aware of § 87(2)(b) sustaining any injuries caused by the punches, PO Castronova replied, "No, not that I'm aware of." When asked if § 87(2)(b) had any apparent injuries by the end of the incident, PBA Counsel Louis Albert asked, "Did you see him bleeding, anything?" PO Castronova replied that he had not seen him bleeding. PO Castronova denied being aware of § 87(2)(b) sustaining fractures to his face. PO Castronova was shown § 87(2)(b)'s arrest photograph, which shows swelling and bruising around his left eye. PO Castronova stated that he recalled observing this injury, but could not account for what would have caused it aside

from § 87(2)(b) resisting arrest, and the physical altercation that ensued. He did not specify what part of the altercation could have caused the injury, or when he first observed it.

Subject Officer: PO DEREK ALMEIDA

- PO Almeida, § 87(2)(b) old at the time of the incident, is a Hispanic man who § 87(2)(b) has brown hair and brown eyes.
- On January 23, 2012, PO Almeida was assigned to SNEU in uniform from the hours of 7:00 a.m. to 3:35 p.m. He was partnered with PO Castronova and was assigned to an unmarked vehicle, a black Ford van.

Memo Book

At 10:45 a.m., § 87(2)(b) was arrested at the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) resisted arrest (encl. 10A-10B).

CCRB Testimony

PO Almeida was interviewed at the CCRB on May 2, 2012 (encl. 10C-10E). On January 23, 2012, at approximately 10:45 a.m., PO Almeida was driving the police vehicle northbound on § 87(2)(b). PO Almeida observed § 87(2)(b) riding his bicycle southbound on § 87(2)(b) against traffic. PO Almeida saw that § 87(2)(b) was holding pills in clear plastic wrap in an upturned palm.

As § 87(2)(b) was passing the van on its passenger side, both PO Almeida and PO Castronova ordered him to stop the bicycle. § 87(2)(b) did not acknowledge these commands in any manner. The van had not been in motion as § 87(2)(b) passed. PO Almeida placed the vehicle in park, and chased after § 87(2)(b) while identifying himself as a police officer and telling him to stop. § 87(2)(b) continued to ride away.

PO Almeida approached § 87(2)(b)'s bicycle and put his hands over § 87(2)(b)'s hands to stop him. PO Almeida and § 87(2)(b) began to struggle and they both fell to the ground. PO Almeida did not specify if PO Castronova had also been making physical contact with § 87(2)(b) at this point. § 87(2)(b) landed face first, with his head and torso making contact with the ground first. PO Almeida landed on top of § 87(2)(b).

Once on the ground, § 87(2)(b) began to flail his arms and roll his body. PO Almeida was unsure where PO Castronova was positioned. PO Almeida was asked if § 87(2)(b) had done anything to make him fear for his safety, or that of his partner. He responded that he was flailing his arms. When asked how this made him fear for his safety, PO Almeida said, "I was scared." PO Almeida's counsel, Meryl Scannell, interjected, and asked PO Almeida if he had any concerns about being punched or § 87(2)(b) reaching for a weapon. He then stated that he was concerned that he or PO Castronova could have been punched and that § 87(2)(b) could have reached for his firearm.

Vehicles in the vicinity were able to slow down upon seeing the struggle on the ground. Neither PO Almeida nor PO Castronova struck § 87(2)(b) at any point to gain compliance. Aside from placing his hands behind his back in order to handcuff him, neither officer used any additional force to subdue § 87(2)(b). § 87(2)(b) was placed in handcuffs and stopped resisting.

The entire struggle took place behind the police van, which was next to the sidewalk. § 87(2)(b) was placed in the rear section of the van. He had walked voluntarily to the van. PO Almeida denied that he and PO Castronova picked § 87(2)(b) up by arms and legs, and threw him into the van. § 87(2)(b)'s bicycle was also placed in the rear of the van. It was not thrown in and did not strike § 87(2)(b).

PO Almeida was unaware of any injuries sustained by § 87(2)(b) and § 87(2)(b) had not complained. PO Almeida was shown § 87(2)(b)'s arrest photo which shows a bruise over § 87(2)(b)'s left eye. PO Almeida had not observed this injury.

PO Almeida was told that § 87(2)(b) had attended § 87(2)(b) or § 87(2)(b), and had gone to a private doctor on § 87(2)(b), and that he had been found to have a bruise over his left eye as well as two fractures to his right eye socket. When asked if he could account for what would have caused the injuries, PO Almeida mentioned § 87(2)(b)'s head making contact with the ground upon falling off the bicycle. PO Almeida did not see anything else make contact with § 87(2)(b)'s left eye during the incident.

Once at the stationhouse, § 87(2)(b) was dropped off at the back of the stationhouse. He had been transported there by himself. Neither PO Almeida nor PO Castronova entered the stationhouse. Neither PO Almeida nor PO Castronova performed a strip search on § 87(2)(b). PO Almeida was unaware of any other officer performing a strip search on him.

Witness Officer: PO DILSON ABREU

- PO Abreu, § 87(2)(b) old at the time of the incident, is a Hispanic man who § 87(2)(b) has brown hair and brown eyes.
- On January 23, 2012, PO Abreu was assigned to SNEU from the hours of 7:00 a.m. to 3:35 p.m. PO Abreu was unsure if he had been uniformed or in plainclothes, who his partner was, or if he had been assigned to a marked or unmarked vehicle.

Memo Book

PO Abreu had no memo book entries in regards to this incident (encl. 11A-11B).

Medical Treatment of Prisoner Form

The Medical Treatment of Prisoner Form, which was prepared by PO Abreu, noted, "Eye injury and bruise" written under "Remarks" (encl. 11C).

Online Booking Sheet

The OLBS, which was prepared by PO Abreu, noted that § 87(2)(b) was in possession of a controlled substance in public view. He was arrested at the corner of § 87(2)(b) and § 87(2)(b). It noted that no physical force was used to apprehend him (encl. 11D-11E).

CCRB Testimony

On May 2, 2012, PO Abreu was interviewed at the CCRB (encl. 11F-11G). On January 23, 2012, at approximately 3:35 p.m., PO Abreu was assigned the arrest at the stationhouse at approximately 3:35 p.m.. PO Abreu had no involvement in the actual apprehension of § 87(2)(b). When PO Abreu first saw § 87(2)(b) he was inside of a holding cell. PO Abreu did not see when § 87(2)(b) had been presented before the front desk.

PO Abreu had noticed that § 87(2)(b) had a bruise over one of his eyes. § 87(2)(b) did not relate to PO Abreu how he received the injury and PO Abreu did not learn how this injury was obtained. PO Abreu had not been aware of other officers expressing concern with § 87(2)(b) possibly hiding drugs or other contraband. PO Abreu was not aware of a strip search being conducted on § 87(2)(b) and he did not conduct one.

Witness Officer: SGT. GURUDEO RAMOUTAR

- Sgt. Ramoutar, § 87(2)(b) old at the time of the incident, is a Hispanic man who § 87(2)(b) has black hair and brown hair.
- On January 23, 2012, Sgt. Ramoutar was assigned to duty as the desk sergeant within the 83rd Precinct stationhouse in uniform from the hours of 6:55 a.m. to 3:52 p.m. He did not have a partner.

Memo Book

Sgt. Ramoutar did not have any memo book entries regarding this incident (encl. 12A-12B).

CCRB Testimony

On May 18, 2012, Sgt. Gurudeo Ramoutar was interviewed at the CCRB (encl. 12C-12D). Sgt. Ramoutar had no independent recollection of § 87(2)(b) being brought into the stationhouse. He did not recognize § 87(2)(b) upon being shown his arrest photograph. Sgt. Ramoutar would have been at the desk for the entirety of the tour with the exception of leaving to perform stationhouse security. Sgt. Ramoutar was unaware of § 87(2)(b) possibly hiding contraband or any reason for a strip search to be performed. Sgt. Ramoutar did not know if § 87(2)(b) was strip searched. He could not recall if any perpetrators being brought in on this date had injuries.

NYPD Documents

SPRINT Report

A request for any relevant SPRINT reports yielded negative results (encl. 19H).

Arrest Photograph

§ 87(2)(b)'s arrest photograph shows a large amount of bruising and swelling over his left eye (encl. 6G).

Roll Call

PO Castronova and PO Almeida are assigned to the 83rd Precinct Street Narcotics Enforcement Unit (SNEU) in vehicle 3454. PO Abreu was also assigned to SNEU, but was assigned to a different vehicle. Sgt. Ramoutar is listed as the desk sergeant (encl. 13B-13D).

Command Log

§ 87(2)(b) was brought into the 83rd Precinct stationhouse at 10:50 a.m. He is noted to have a contusion over his left eye. No strip-search is noted to have been authorized or conducted (encl. 13E).

Property Voucher

§ 87(2)(b) was found to have been in possession of 20 loose Xanax pills (encl. 13F-13G).

Medical Records

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(b) filed a Notice of Claim on § 87(2)(b). § 87(2)(b) stated that he had been pushed from his bicycle and repeatedly struck on his face and head. No specific compensation amount is noted (encl. 16A-16B). On March 4, 2013, the attorneys handling § 87(2)(b)'s case were contacted and it was discovered that § 87(2)(b) had participated in a 50-H hearing. The individual spoken to on this date was unable to provide a date for when this occurred, but agreed to call the undersigned back in regard to providing a transcript. The office was contacted twice more on § 87(2)(b). Individuals agreed to call the undersigned back with both calls. The law office has not contacted the CCRB as of the date this report was written.

[illegible]

- This is the first complaint filed by § 87(2)(b) (encl. 1E).

- PO Castronova has been a member of the service for ten years, with no substantiated allegations having been made against him (encl. 1A-1B).
- PO Almeida has been a member of the service for four years, with no substantiated allegations having been made against him (encl. 1C-1D).

Conclusion

Both PO Castronova and PO Almeida admitted to using physical force against § 87(2)(b) in order to arrest him. § 87(2)(b) claimed that the same two officers that used force to arrest him also strip searched him inside the 81st Precinct stationhouse. Officers Castronova and Almeida fit the physical descriptions § 87(2)(b) provided for these officers. § 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Allegation A- Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova used physical force against § 87(2)(b)

Allegation B- Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida used physical force against § 87(2)(b)

In his sworn statement, § 87(2)(b) stated that he could not recall the manner in which he was taken to the ground. In his initial statements to the CCRB and IAB, he stated that he was thrown off the bicycle. In his second telephone statement to the CCRB, he stated that he was pushed off the bicycle. Both officers stated that § 87(2)(b) falling onto the ground was caused by his own struggling while the bicycle was in between his legs. § 87(2)(g)

§ 87(2)(b), it is recommended that **allegations A and B be closed as unsubstantiated**

Allegation C-Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova used physical force against § 87(2)(b)

§ 87(2)(b) alleged that he was taken to the ground, off of his bicycle. Upon landing face down on the ground, PO Castronova punched him in the face multiple times. § 87(2)(a) PHL § 18(6)

§ 87(2)(b)'s arrest photograph shows bruising and swelling over his left eye.

PO Castronova stated that § 87(2)(b)'s torso made contact with the ground upon falling. PO Almeida stated that § 87(2)(b) fell face-first, and that his face and torso made contact with the ground. PO Castronova stated that § 87(2)(b) resisted arrest by flailing his arms, kicking his legs, and refusing to provide his arms to be handcuffed. He had been unsure if § 87(2)(b)'s kicks were intended to strike himself or his partner. PO Almeida described § 87(2)(b) flailing his arms and rolling his body. In order to overcome this resistance, PO Castronova punched § 87(2)(b) several times on his head and torso. He stated that he threw less than five punches. PO Almeida denied observing PO Castronova strike § 87(2)(b)

PO Castronova attributed the bruising and swelling over § 87(2)(b)'s eye in his arrest photograph to the general struggle. He could not account for the cause of the fractures. PO Almeida denied observing the injuries shown in the arrest photograph but stated that he saw § 87(2)(b)'s face make contact with the ground upon falling off of the bicycle.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Patrol Guide Section 203-11 states that officers may only use the minimum amount of force necessary to effect an arrest (encl. 0A-0B).

§ 87(2)(g)

it is recommended that **allegation C be closed as exonerated.**

Allegation D-Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Daniel Castronova struck § 87(2)(b) with a bicycle.

Allegation E-Force: At § 87(2)(b) and § 87(2)(b) in Brooklyn, PO Derek Almeida struck § 87(2)(b) with a bicycle.

§ 87(2)(b) alleged that both officers allegedly threw him into the back of the police van, and threw his bicycle on top of him. Business owner § 87(2)(b) who § 87(2)(b) referred as a witness, stated that he observed § 87(2)(b) on his feet as he entered one of the van's side doors. He further stated that § 87(2)(b) resisted being placed in the van by placing his feet against the side. § 87(2)(b) saw § 87(2)(b)'s bicycle be thrown into the back of the van. He stated that the bicycle would not have struck § 87(2)(b) due to the seating arrangement of the van. Both officers denied throwing § 87(2)(b) into the van or throwing his bicycle on top of him. § 87(2)(g)

§ 87(2)(b), it is recommended that **allegations D and E be closed as unsubstantiated.**

Allegation F- Abuse of Authority: At the 83rd Precinct stationhouse, PO Daniel Castronova strip-searched § 87(2)(b)

Allegation G- Abuse of Authority: At the 83rd Precinct stationhouse, PO Derek Almeida strip-searched § 87(2)(b)

§ 87(2)(b) alleged that once at the 83rd Precinct stationhouse, he was strip-searched by Officers Castronova and Almeida. Both officers denied performing a strip-search on § 87(2)(b). The desk officer at the time, Sgt. Ramoutar, and § 87(2)(b)'s arresting officer, PO Abreu, denied being aware of § 87(2)(b) being strip-searched. The Command Log does not list a strip-search being authorized.

§ 87(2)(g)

§ 87(2)(b), it is recommended that **allegations F and G be closed as unsubstantiated.**

Team: 5

Investigator: _____	Bernardo Gutierrez	March 13, 2013
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date